

TERMS AND CONDITIONS
Safeware Core Protection Plan ("Plan")

PLEASE READ THESE TERMS AND CONDITIONS CAREFULLY: It describes the protection you will receive in return for payment by You. Please keep this document in a safe place along with the sales receipt You received when You purchased Your Product, as You may need them to verify your coverage at the time of service. You must maintain the Product as recommended by the manufacturer's owner's manual or product warranty.

DEFINITIONS:

- (1) "We", "Us" and "Our" mean the company obligated under this Agreement, SAFEWARE, 5700 Perimeter Dr. Ste. E. Dublin OH 43017, (800-800-1492) in all states except in Florida and Oklahoma where it is LYNDON SOUTHERN INSURANCE COMPANY, 10151 Deerwood Park Boulevard, Building 100, Suite 500, Jacksonville, Florida 32256 (800) 888-2738, Florida License No. 03698, and in Hawaii, New Mexico and Washington where it is 4warranty Corporation, 10151 Deerwood Park Boulevard, Building 100, Suite 500, Jacksonville, Florida 32256 (800) 867-2216;
- (2) "You" and "Your" refer to the purchaser of the product(s) covered by this Plan.
- (3) "Product" means the device which you purchased and which is covered by this Plan;
- (4) "Failure" means the failure of Your Product to perform its intended function due to mechanical or electrical breakdown resulting from defects in materials or workmanship during normal usage of your Product;
- (5) "Administrator" and "SAFEWARE", [5700 Perimeter Drive, Suite E, Dublin, OH 43017 (800) 800-1492], means Safeware, The Insurance Agency Inc., in all states except in Alabama, Arkansas, Georgia, Minnesota, Missouri, Montana, Nevada, New Mexico, Oregon, Texas, Utah, and Wyoming where it is Safeware Inc, except in Florida, Indiana, Kentucky, Maryland, New Jersey, New York, and Oklahoma where it is Safeware Group Inc., except in Arizona, New Hampshire, and Wisconsin where it is Safeware, except in Vermont where it is Safeware Group.
- (6) "Mobile unit" refers to Apple® laptops such as MacBook Pros® and MacBook Airs®.
- (7) "Stationary unit" refers to Apple® desktops such as MacMinis®, iMacs® and MacPros®.

PRODUCT ELIGIBILITY: This Plan covers Products purchased as new and manufactured for use in the United States, which at the time of purchase included a manufacturer's original warranty valid in the United States. Accessories and/or add-on options purchased separately and not essential to the basic function of the Product are not eligible for coverage.

WHAT IS COVERED: We agree to repair or replace Your Product in the event Your Product is rendered inoperable due to a mechanical or electrical Failure or due to a service event described under the section below entitled "ADDITIONAL COVERAGES" during the term of this Plan. For mobile units (excluding iPads®) and stationary units, coverage for mechanical and electrical breakdown, excluding power surges, is contingent upon You purchasing an AppleCare Protection Plan® at point of sale for the unit in addition to this Plan. Parts used to repair or replace Your Product may be new, used, refurbished, or non-original manufacturer parts that perform to the factory specifications of Your Product. This Plan does not cover repair or replacement of the Product for any of the causes, or provide coverage for any losses set forth in the section entitled "**WHAT IS NOT COVERED**" below.

In the event of a covered claim, we will furnish labor and/or parts required to repair the mechanical or electrical Failure of your Product. Non-original manufacturer's parts of like kind and quality may be used if the original manufacturer's parts are unavailable. In lieu of repairing the Product, we reserve the right, at our sole discretion, to replace your Product with a product of equal or similar features and functionality. If your Product is replaced, we will have no further obligation to repair or replace your Product and you will not be entitled to make any further claims under this Plan.

Technological advances may result in a replacement product with a lower selling price than your original Product. No refunds will be made based on the replacement product cost difference. If the covered product is not repairable and a replacement product is not available, we will refund up to the product purchase price, excluding taxes and less claims paid, if any, and Our obligations under this Plan will be satisfied. Should repair parts become unavailable because a manufacturer has gone out of business, if a manufacturer no longer provides product support or all parts sources have been exhausted, the Obligor and the Administrator shall be excused from performance hereunder and you shall receive a full refund of the purchase price paid by you for the Plan. In no event shall the Obligor or Administrator be liable for any damages as a result of the unavailability of repair parts. You may be required to ship or deliver at Your cost the defective product prior to receiving reimbursement or a replacement product. The Administrator and Insurance Company own all parts removed from repaired products or complete units replaced in their entirety.

ADDITIONAL COVERAGES:

Accidental Damage from Handling Coverage (ADH Coverage): ADH Coverage augments your Plan by providing protection against sudden and unforeseen accidental damage to your Product, such as drops and liquid spills, provided such damage was in the course of regular use of the Product by you, subject to the exclusions below. Coverage begins on date of purchase. ADH Coverage does not provide protection against normal wear and tear, theft, mysterious disappearance, misplacement, viruses, reckless, abusive, willful or intentional conduct associated with handling and use of the product, cosmetic damage and/or other damage that does not affect unit functionality, or damage caused during shipment between you and our service providers. If protective items such as covers, carrying cases or pouches, etc. were provided or made available for use with your Product, it is expected that you will continually use these accessories for protection against damage to your Product. "Abuse" is defined as your intentional non-utilization of protective items during the use of your Product, or your treatment of the Product(s) in a harmful, injurious or offensive manner that may result in its damage. Any resultant damage from this type of treatment is NOT covered by ADH Coverage.

For the purpose of this Plan, Accidental Damage is defined as a single, unexpected, sudden and unintentional event and does not include accumulated damage from continual or multiple events. The use of this coverage requires an explanation of where and when the accident occurred as well as a detailed description of the actual event. Failure to provide this information will result in claim denial.

Battery Repair or Replacement Coverage for mobile units only (excluding iPads®): If you purchased a mobile unit (excluding an iPad®), this Plan provides for one (1) battery repair or replacement, up to \$100, when the original battery fails. We may require you to return your original battery to us to receive a replacement battery. Coverage begins on date of purchase.

Maintenance Check-Up for stationary units only: If you purchased a stationary unit, this Plan provides for one (1) maintenance check-up, up to \$50, during the term of this Plan. Coverage begins on date of purchase.

Power Surge Protection: This Plan also covers the Failure of Your Product resulting from a power surge caused by power outage while Your Product is properly connected to a surge protector approved by Underwriters Laboratories Inc. POWER SURGE DOES NOT COVER DAMAGES CAUSED BY IMPROPER INSTALLATION OR CONNECTION TO AN INCORRECT POWER SOURCE. Coverage begins on date of purchase.

ADDITIONAL BENEFITS TO YOUR PLAN:

DEDUCTIBLE: There is no Deductible required to obtain service on Your Product.

PLACE OF SERVICE: You will receive service on Your Product as described below:

Carry-In: Unless otherwise provided in this Plan, Products must be delivered and picked up by You at Our authorized service center during normal business hours.

This Plan also includes Depot Service for those rare instances when you are in a location that does not allow you the opportunity to access one of Our authorized service centers. You will be responsible for shipping the Product to Our designated service center. We will pay for shipping of the Product to and from Your location if all Our shipping instructions are followed.

LIMIT OF LIABILITY: The total amount that We will pay for repairs or replacement made in connection with all claims that You make pursuant to this Plan shall not exceed the original purchase price of Your Product, less taxes. In the event We make payments for repairs, which in the aggregate, are equal to the original purchase price of Your Product or We replace Your Product, We will have no further obligations under this Plan. IN NO EVENT SHALL THE TOTAL OF ALL CLAIMS OR REPLACEMENT EXCEED THE ORIGINAL PRICE PAID BY YOU FOR THE COVERED PRODUCT, LESS TAXES.

WE SHALL NOT BE LIABLE FOR ANY INCIDENTAL OR CONSEQUENTIAL DAMAGES, INCLUDING BUT NOT LIMITED TO, PROPERTY DAMAGE, LOST TIME OR LOST DATA RESULTING FROM THE FAILURE OF ANY PRODUCT OR EQUIPMENT OR FROM DELAYS IN SERVICE OR THE INABILITY TO RENDER SERVICE. WE SHALL NOT BE LIABLE FOR ANY AND ALL PRE-EXISTING CONDITIONS THAT OCCUR PRIOR TO THE EFFECTIVE DATE OF THIS PLAN, INCLUDING INHERENT PRODUCT FLAWS.

SERVICE CHARGES FOR REPAIRS NOT COVERED UNDER THIS AGREEMENT ARE YOUR RESPONSIBILITY.

PLAN TERMS:

Date of Purchase (DOP) Plan for mobile units (excluding iPads®) and stationary units : These Plans begin on the date of Product

purchase and will continue for as long as You subscribe to and renew this Plan, but no longer than sixty (60) months from the date of Product purchase. This Plan is inclusive of the manufacturer's warranty; it does not replace the manufacturer's warranty but provides certain benefits during the term of the manufacturer's warranty. During the manufacturer's warranty period, any parts, labor or on-site service or shipping costs covered by that warranty are the sole responsibility of the manufacturer. Upon expiration of the shortest portion of the manufacturer's original parts and/or labor warranty, this Plan continues to provide many of the manufacturer's benefits as well as certain additional benefits listed within this Plan, and will furnish replacement parts and/or labor necessary to restore Your covered Product to standard manufacturer's operating condition.

Date of Purchase (DOP) Plan for iPads®: This Plan begins on the date of Product purchase and will continue for as long as You subscribe to and/or renew this Plan, but no longer than twenty four (24) months from the date of Product purchase. This Plan is inclusive of the manufacturer's warranty; it does not replace the manufacturer's warranty but provides certain benefits during the term of the manufacturer's warranty. During the manufacturer's warranty period, any parts, labor or on-site service or shipping costs covered by that warranty are the sole responsibility of the manufacturer. Upon expiration of the shortest portion of the manufacturer's original or factory-refurbished parts and/or labor warranty, this Plan continues to provide many of the manufacturer's benefits as well as certain additional benefits listed within this Plan, and will furnish replacement parts and/or labor necessary to restore Your covered Product to standard manufacturer's operating condition.

Additional Coverages: The Additional Coverages begin on the date of Product purchase and continue for as long as You subscribe to and renew this Plan, but no longer than sixty (60) months from the date of Product purchase for mobile units and stationary units and twenty four (24) months from the date of Product purchase for iPads®. Coverage for the mechanical or electrical Failure of Your Product is subject to the PLAN TERMS described above.

YOUR RESPONSIBILITIES:

To receive service or support under the Plan, you agree to comply with each of the terms listed below:

- (i) You will provide updated credit card information and make timely payments if you have chosen the monthly payment option.
- (ii) You will provide your Plan Agreement Number and a copy of your Plan's original proof of purchase, if requested.
- (iii) You will provide information about the symptoms and causes of the issues with the Covered Product.
- (iv) You will respond to requests for information, including but not limited to the covered Product's serial number, model, version of the operating system and software installed, any peripherals devices connected or installed on the covered Product, any error messages displayed, the actions which were taken before the covered Product experienced the issue and the steps taken to resolve the issue.
- (v) You will follow instructions We give you, including but not limited to refraining from delivering products and accessories to Our authorized service center that are not subject to repair or replacement service and if necessary, packing the covered Product in accordance with shipping instructions.
- (vi) You will update software to currently published releases prior to seeking service.
- (vii) You will make sure to backup software and data residing on the covered Product. You will be responsible for reinstalling all software programs, data and passwords.

IF YOUR PRODUCT NEEDS REPAIR: If you need to file a claim under this Plan, You must contact the Administrator for the appropriate authorized service center. Call the toll-free number at (800) 800-6132 between the hours of 8:00 AM and 6:00 PM eastern standard time or go online to www.safeware.com. For faster service, please have your proof of Product purchase (sales receipt) available when you contact the Administrator. **THIS PLAN MAY BECOME VOID IF YOU MAKE UNAUTHORIZED REPAIRS.** When you receive authorization for repairs, the service representative will advise you of the designated service center. A copy of the proof of Product purchase (sales receipt), and a brief written description of the problem must accompany your Product. We will not be liable for freight charges or damage due to improper packaging. You must return your Product to your retailer unless otherwise instructed by the Administrator. If your Plan expires during the time of an approved repair or replacement, this Plan is extended until the repair or replacement has been completed.

WHAT IS NOT COVERED: THIS PLAN DOES NOT COVER ANY LOSS, REPAIRS OR DAMAGE CAUSED BY OR RESULTING FROM:

- (A) Any equipment located outside the United States of America.
- (B) The Plan does not apply to installation, removal or disposal of the Product, or provision of equipment while the Product is being serviced.
- (C) The Plan does not apply to damage caused by (a) a product that is not the covered Product, (b) abuse, misuse, fire, earthquake or other external causes except as described in the paragraph entitled Accidental Damage From Handling Coverage above, (c) operating the covered Product outside the permitted or intended uses described by the manufacturer, or (d) service (including upgrades and expansions) if such was performed by anyone who is not a representative of Apple® or an "Apple Authorized Service Provider"®

("AASP").

(D) The Plan does not apply to a Product with a serial number that has been altered, defaced or removed, or has been modified to alter its functionality or capability without the written permission of the manufacturer.

(E) The Plan does not apply to a covered Product that has been lost or stolen. This Plan only covers a covered Product that is returned in its entirety.

(F) The Plan does not apply to cosmetic damage to the covered Product, including but not limited to scratches and dents that do not otherwise affect the functionality of the covered Product.

(G) Except for stationary units, the Plan does not apply to preventative maintenance on the covered Product.

(H) The Plan does not apply to defects caused by normal wear and tear or which is otherwise due to normal aging of the Product.

(I) The Plan does not apply to a pre-existing condition on any covered Product if you purchased the Plan after you purchased the Product.

YOU ARE RESPONSIBLE FOR BACKING UP ALL SOFTWARE AND DATA ON A REGULAR BASIS AND PRIOR TO COMMENCEMENT OF ANY REPAIR. THIS PLAN DOES NOT COVER RESTORATION OF SOFTWARE OR DATA, OR DATA RETRIEVAL TO YOUR COVERED PRODUCT. IF YOUR COVERED PRODUCT EXPERIENCES A FAILURE OR DAMAGE THAT IS EXCLUDED FROM COVERAGE UNDER THIS SECTION OR IN THE EVENT OF A REPAIR INCIDENT WHEREIN THERE IS A "NO PROBLEM FOUND" DIAGNOSIS FROM THE MANUFACTURER OR A MANUFACTURER-AUTHORIZED REPAIR SOURCE, THEN YOU ARE RESPONSIBLE FOR ALL REPAIR COSTS INCLUDING SHIPPING COSTS AND/OR THE COST OF ON-SITE SERVICE.

SHOULD THE MANUFACTURER OF YOUR PRODUCT GO OUT OF BUSINESS OR THE MANUFACTURER NO LONGER PROVIDE PRODUCT SUPPORT AND ALL PARTS SOURCES HAVE BEEN EXHAUSTED DURING THE COVERAGE PERIOD OF THIS PLAN, THE OBLIGOR AND THE ADMINISTRATOR SHALL BE EXCUSED FROM PERFORMANCE HEREUNDER AND YOU SHALL BE RECEIVE A FULL REFUND OF THE PURCHASE PRICE PAID BY YOU FOR THE SERVICE PLAN LESS CLAIMS PAID.

IN NO EVENT SHALL THE COMPANY OR ANY OF THE COMPANY'S AGENTS BE LIABLE FOR SPECIAL, INDIRECT, INCIDENTAL OR CONSEQUENTIAL DAMAGES WHETHER IN CONTRACT, TORT, OR NEGLIGENCE. THIS CONTRACT WILL NOT COVER LOSS OR DAMAGE NOT SPECIFICALLY LISTED UNDER "WHAT IS COVERED".

OUR RIGHT TO RECOVER PAYMENT

If you have a right to recover against another party for anything we have paid under the Plan, your rights shall become our rights. You shall do whatever is necessary to enable us to enforce these rights. We shall recover only the excess after you are fully compensated for your loss.

CANCELLATION: You may cancel this Plan by informing the selling dealer/retailer of Your cancellation request within the first thirty (30) days of the purchase of the Plan and You will receive a one-hundred percent (100%) refund of the purchase price of Your Plan. If Your cancellation request is made more than thirty (30) days from the original date of purchase, You will receive a pro-rata refund of the Plan purchase price, minus the cost of repairs made (if any). The cancellation provisions in this Plan only apply to the original purchaser of this Plan.

If we cancel this Plan for non-payment, we will provide you with a written notice at your last known e-mail address, with the effective date for the cancellation and the reason for cancellation. Return of the premium is based upon 100% of the unearned pro-rata premium.

GUARANTEE:

THIS IS NOT AN INSURANCE POLICY. THE OBLIGOR UNDER THIS AGREEMENT IS INSURED BY LYNDON SOUTHERN INSURANCE COMPANY, 10151 DEERWOOD PARK BLVD., BLDG. 100, SUITE 500, JACKSONVILLE, FL 32256 (800) 888-2738, EXCEPT IN GEORGIA WHERE THE OBLIGOR IS INSURED BY INSURANCE COMPANY OF THE SOUTH, 10151 DEERWOOD PARK BLVD., BLDG. 100, SUITE 500, JACKSONVILLE, FL 32256 (800) 888-2738, EXCEPT IN CALIFORNIA WHERE THE OBLIGOR IS INSURED BY RESPONSE INDEMNITY COMPANY OF CALIFORNIA, 10151 DEERWOOD PARK BLVD., BLDG. 100, SUITE 500, JACKSONVILLE, FL 32256 (800) 888-2738, AND EXCEPT IN NEW YORK, RHODE ISLAND AND WISCONSIN WHERE THE OBLIGOR IS INSURED BY ATLANTIC SPECIALTY INSURANCE COMPANY, 605 NORTH HIGHWAY 169, SUITE 800, PLYMOUTH, MN 55441. IF THE ADMINISTRATOR FAILS TO PROVIDE SERVICE OR PAY A CLAIM WITHIN SIXTY (60) DAYS YOU MAY SUBMIT YOUR CLAIM DIRECTLY TO THE INSURER AT THE ABOVE ADDRESS.

IN WASHINGTON, OBLIGATIONS OF THE SERVICE CONTRACT PROVIDER UNDER THIS AGREEMENT ARE BACKED BY THE FULL FAITH AND CREDIT OF THE SERVICE CONTRACT PROVIDER. IF ANY PROMISE MADE IN THE AGREEMENT HAS BEEN DENIED OR HAS NOT BEEN HONORED YOU MAY CONTACT FORTEGRA FINANCIAL CORPORATION AT (800) 888-2738.

TRANSFERABILITY: This Plan is not transferable.

IMPORTANT CONSUMER INFORMATION: If your Product is exchanged by the manufacturer or retailer, you must advise the Administrator in writing at 6500 Busch Boulevard, Suite 233, Columbus, OH 43229 Attn: ESP Administration or call 1-800-800-6132 with the date of exchange, make, model, and serial number of the replacement product within 10 days of the exchange. In the event of such exchange, the coverage period shall not exceed the original contract expiration date.

This Plan, including the terms, conditions, limitations, exceptions and exclusions, and the sales receipt for your Product, constitutes the entire agreement and no representation, promise or condition not contained herein shall modify these items, except as required by law.

SPECIAL STATE REQUIREMENTS

Regulation of Plans may vary widely from state to state. Any provision within this Plan which conflicts with the laws of the state where You live shall automatically be considered to be modified in conformity with applicable state laws and regulations as set forth below. The following state specific requirements apply if Your Plan was purchased in one of the following states and supersede any other provision within Your Plan terms and conditions to the contrary.

Alabama Residents: You may cancel this Plan within twenty (20) days of the receipt of this Plan. If no claim has been made under the Plan, the Plan is void and we shall refund to you the full purchase price of the Plan including any premium paid for the applicable insurance policy. Any refund due to you will be credited to any outstanding balance of your account, and the excess, if any, shall be refunded to you. A ten (10) percent penalty per month shall be added to a refund that is not paid or credited within forty-five (45) days after you cancel the Plan. If you cancel this Plan after twenty (20) days of receipt of this Plan, we shall refund to you the unearned portion of the full purchase price of the Plan including the unearned portion of any premium paid for any applicable insurance policy. Any refund due to you will be credited to any outstanding balance of your account, and the excess, if any shall be refunded to you.

Arizona Residents: If your written notice of cancellation is received prior to the expiration date, the Administrator shall refund the remaining pro-rata price, regardless of prior services rendered under the Plan. The pre-existing condition exclusion does not apply to conditions occurring prior to the sale of the consumer product by the Obligor, its assignees, subcontractors and/or representatives.

California Residents: For all products other than home appliances and home electronic products, the Cancellation provision is amended as follows: If the Plan is canceled: (a) within sixty (60) days of the receipt of this Plan, you shall receive a full refund of the price paid for the Plan provided no service has been performed, or (b) after sixty (60) days, you will receive a pro rata refund, less the cost of any service received.

Connecticut Residents: The expiration date of this Plan shall automatically be extended by the duration that the product is in our custody while being repaired. In the event of a dispute with the Administrator, you may contact The State of Connecticut, Insurance Department, PO Box 816, Hartford, CT 06142-0816, Attn: Consumer Affairs. The written complaint must contain a description of the dispute, the purchase price of the product, the cost of repair of the product and a copy of the Plan.

Florida Residents: The Plan shall be canceled by us for fraud or material misrepresentation, including but not limited to rental use. Unauthorized repair or replacement of covered equipment shall result in the cancellation of the Plan by us. In the event of cancellation by us, written notice of cancellation shall be mailed to you not less than sixty (60) days before cancellation is effective. This Plan can be canceled by you at any time for any reason by emailing, mailing or delivering to us notice of cancellation. If the Plan is canceled: (a) within thirty (30) days of the receipt of the Plan, you shall receive a full refund of the price paid for the Plan provided no service has been performed, or (b) after thirty (30) days, you will receive a refund based on 100% of unearned pro rata premium less any claims that have been paid or less the cost of repairs made by us. If we cancel the Plan, the return premium is based upon 100% of the unearned pro rata premium.

Georgia Residents: This Plan shall be non-cancelable by us except for fraud, material misrepresentation, or failure to pay consideration due therefore. The cancellation shall be in writing and shall conform to the requirements of Code 33-24-44. You may cancel at any time upon demand and surrender of the Plan and we shall refund the excess of the consideration paid for the Plan above the customary short rate for the expired term of the Plan. This Plan excludes coverage for incidental and consequential damages and pre-existing conditions only to the extent such damages or conditions are known to you or reasonably should have been known to you.

Illinois Residents: You may cancel this Plan for any reason at any time. If you cancel within thirty (30) days of contract purchase, and we have not paid a claim, you will receive a full refund, less a cancellation fee of \$50.00 or 10% of the Plan price. If you cancel after thirty (30) days or any time after we pay a claim, you will receive a pro-rata refund of the Plan price based on the days remaining, less any claims that have been paid, less a cancellation fee of \$50.00 or 10% of the Plan price.

Maine Residents: You may cancel this Plan within twenty (20) days of the receipt of this Plan if sent by mail or within ten (10) days if delivered at the point of sale. If no claim has been made under the Plan, the Plan is void and we shall refund to you the full purchase price of the Plan including any premium paid for the applicable insurance policy. Any refund due to you will be credited to any outstanding balance of your account, and the excess, if any, shall be refunded to you. A ten (10) percent penalty per month shall be added to a refund that is not paid or credited within forty-five (45) days after you cancel the Plan. If you cancel this Plan after twenty (20) days of receipt of this Plan if sent by mail or within ten (10) days if delivered at the point of sale, we shall refund to you the unearned pro rata premium, less any claims paid. An administrative fee not to exceed ten (10) percent of the premium fee by you may be charged by us. Any refund due to you will be credited to any outstanding balance of your account, and the excess, if any shall be refunded to you. In the event of cancellation by us, written notice to you will be provided at least 15 days prior to the cancellation and will contain the effective date of the cancellation and the reason for cancellation. If a Plan is canceled by us, you will be refunded 100% of the unearned pro rata provider fee, less any claims paid. An administrative fee not to exceed 10% of the provider fee paid by you may be charged by us.

Nevada Residents: You are entitled to a "Free Look" period for this Plan. If you decide to cancel this Plan within thirty (30) days of purchase, you are entitled to a one hundred percent (100%) refund of any fees paid. If you cancel this Plan after thirty (30) days from purchase, you will receive a pro rata refund based on the days remaining, less a cancellation fee of twenty-five dollars (\$25.00) or ten percent (10%) of the Plan fee, whichever is less. If we fail to pay the cancellation refund within 45 days of your written request we will pay you a penalty of ten percent (10%) of the purchase price for each thirty (30) day period or portion thereof that the refund and any accrued penalties remain unpaid. If this Plan is canceled by Us, no cancellation may become effective until at least 15 days after the notice of cancellation is mailed to you. We can cancel this Plan due to unauthorized repairs which result in a material change in the nature or extent of the risk, occurring after the first effective date of the current Plan, which causes the risk of loss to be substantially and materially increased beyond that contemplated at the time the Plan was issued or last renewed. If we cancel this Plan, no cancellation fee will be imposed and no deduction for claims paid will be applied. If your covered failure results in a loss of heating, cooling, or electrical power to your air conditioner or refrigerator/freezer, repairs on your covered product will commence within 24 hours after you report your claim. If these repairs cannot be completed within three (3) calendar days, we will send you a report indicating the status of these repairs.

New Mexico Residents: If this Plan has been in force for a period of seventy (70) days, we may not cancel before the expiration of the Plan term or one (1) year, whichever occurs first, unless: (1) you fail to pay any amount due; (2) you are convicted of a crime which results in an increase in the service required under the Plan; (3) you engage in fraud or material misrepresentation in obtaining this Plan; (4) you commit any act, omission, or violation of any terms of this Plan after the effective date of this Plan which substantially and materially increase the service required under this Plan; or (5) any material change in the nature or extent of the required service or repair occurs after the effective date of this Plan and causes the required service or repair to be substantially and materially increased beyond that contemplated at the time you purchased this Plan.

North Carolina Residents: The purchase of this Plan is not required either to purchase or to obtain financing for a home appliance.

Oklahoma Residents: The "Cancellation" section is deleted and replaced by the following: you may cancel this contract at any time by surrendering it or providing written notice to the retailer at the address where you purchased this Plan. You may also cancel this Plan by surrendering it or providing written notice to SAFEWARE at the address listed above. You may cancel this Plan for any reason. In the event you cancel this Plan within 30 days of receipt of the Plan, You shall receive a full refund of any payments made by you under this Plan. In the event you cancel this Plan after 30 days of receipt of this Contract, You shall receive a refund based upon 100% of the unearned pro-rata premium less an administrative fee not to exceed 10% of the unearned pro-rata premium or \$25, whichever is less, and less the cost of claims paid. SAFEWARE may not cancel this Plan except for fraud, material misrepresentation or non-payment by you; or if required to do so by any regulatory authorization. If SAFEWARE cancels this Plan, you shall receive a refund of 100% of the unearned pro-rata premium. SAFEWARE may not cancel this Plan without providing you with written notice at least thirty days prior to the effective date of cancellation. Such notice shall include the effective date of cancellation and the

reason for cancellation. The following sentence is added to this contract: Coverage afforded under this contract is not guaranteed by the Oklahoma Insurance Guaranty Association. Oklahoma service warranty statutes do not apply to commercial use references in this Plan.

South Carolina Residents: To prevent any further damage, please refer to the owner's manual. In the event the service Plan provider does not provide covered service within sixty (60) days of proof of loss by the Plan holder, the Plan holder is entitled to apply directly to the Insurance Company. A ten percent (10%) penalty per month shall be added to a refund that is not paid or credited within forty-five (45) days after return of the Plan to us. If the Insurance Company does not resolve such matters within sixty (60) days of proof of loss, they may contact the SC Department of Insurance, P.O. Box 100105, Columbia, SC 29202-3105, (800) 768-3467.

Texas Residents: If you purchased this Plan in Texas, unresolved complaints concerning a provider or questions concerning the registration of a service Plan provider may be addressed to the Texas Department of Licensing and Regulation, P.O. Box 12157, Austin, Texas 78711, telephone number (512) 463-6599 or (800) 803-9202. You may apply for reimbursement directly to the insurer if a refund or credit is not paid before the forty-sixth (46th) day after the date on which the Plan is returned to the provider.

Utah Residents: NOTICE. This plan is subject to limited regulation by the Utah Insurance Department. To file a complaint, contact the Utah Insurance Department. Coverage afforded under this Plan is not guaranteed by the Utah Property and Casualty Guarantee Association. This Plan may be canceled due to unauthorized Repair, which results in a material change in the nature or extent of the risk, occurring after the first effective date of the current policy, which causes the risk of loss to be substantially and materially increased beyond that contemplated at the time the policy was issued or last renewed. Failure to notify within the prescribed time will not invalidate the claim if you can show that notification was not reasonably possible. If we cancel this contract due to fraud or material misrepresentation, you will be notified thirty (30) days prior to cancellation. If we cancel this Plan due to nonpayment, you will be notified ten (10) days prior to Plan cancellation.

WASHINGTON RESIDENTS: You may return this Plan within 20 days of the date this Plan was mailed to You or within 10 days if the Plan was delivered to You at the time of sale. If You made no claim, the Plan is void and the full purchase price will be refunded to You. A 10% penalty per month will be added to a refund that is not made within 30 days of Your return of the Plan. These provisions apply only to the original purchaser of the Plan. In the event We cancel this Plan, We will mail a written notice to You at Your last known address at least 21 days prior to cancellation with the effective date for the cancellation and the reason for cancellation. What is Not Covered from coverage are limited to those expressly stated under the **"WHAT IS NOT COVERED"** section above. You may file a claim directly with Dealers Alliance Corporation, 3518 Riverside Drive, Upper Arlington, OH 43221 or 800-282-8913.

Wisconsin Residents: THIS WARRANTY IS SUBJECT TO LIMITED REGULATION BY THE OFFICE OF THE COMMISSIONER OF INSURANCE. This Plan shall not be canceled due to unauthorized repair of the covered equipment, unless we are prejudiced by your failure to obtain such authorization. If this Plan is canceled, no deduction shall be made from the refund for the cost of any service received.

Wyoming Residents: This Plan will be considered void and we will refund you the full purchase price of the Plan or credit your account if you have not made a claim under this Plan and you have returned the Plan to us a) within 20 days after the date we have mailed the Plan to you, b) within 10 days after you have received the Plan if the Plan was furnished to you at the time the Plan was purchased, or c) within a longer time period if specified in the Plan. A ten percent (10%) penalty per month shall be added to a refund that is not paid or credited within forty-five (45) days after return of the Plan to us. The right to void the Plan provided in this subsection applies only to the original Plan purchaser and is not transferable. If we cancel this Plan for reasons other than nonpayment, a material misrepresentation made by you to us or because of a substantial breach of duties by you relating to the product or its use, we will mail a written notice to you at least ten (10) days prior to cancellation. The notice of cancellation shall state the effective date of cancellation and the reason for cancellation. In the event covered service is not provided by us within sixty (60) days of proof of loss by you, you are entitled to apply directly to the reimbursement insurance company. The Arbitration Agreement provision in this Plan is replaced with the following: "If there are disputes between You and Us that are not resolved by negotiations, You and We may in a separate written agreement voluntarily consent to arbitration. Any arbitration proceedings shall be conducted within the state of Wyoming." For the purpose of this Arbitration Agreement, references to "We", "Us" and "Our" include the Plan Obligor and Administrator, as defined above, and their respective parents, subsidiaries, affiliates, service contract insurers, agents, employees, successors and assigns.

These terms & conditions are available by calling (800) 800-6132 to have a copy mailed to You.